by the sentence of a special tribunal constituted under Section 72 of the Government of India Act. But Lord Irwin had failed both to demonstrate the existence of an ‘emergency’ and that ‘peace and good government’ of British India was at stake. It was therefore a clear mistake of law. The conferment of ‘a posthumous conditional pardon where a death sentence has already been carried out’ is arguably today the right remedy because ‘[t]he grant of such a pardon is a recognition by the state that a mistake was made and that a reprieve should have been granted’. This is all the more so given that an application for a reprieve had indeed already been made back then. It was made by D.N. Pritt before the judicial committee of the Privy Council in February 1931, but it was summarily dismissed without being admitted to a full hearing.[17] Referring to the Governor-General, Lord Dunedin had ruled that it was not ‘in any way incumbent on him as a matter of law’[18] for Lord Irwin to give reasons for bringing the accused to trial under the ordinance, which is quite simply wrong. It was wrong then, and it is wrong now.